

EXHIBIT B

MIL No. 6 and MIL No. 17

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Clerk's Transcript, CT 1, pp. 149-151, 238

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Trial Witnesses Who Have Not Yet Testified Shall Be Excluded From The**
14 **Courtroom**

15 Defendant requests that all witnesses (except Plaintiff’s and Defendant’s trial representative) be
16 excluded from the courtroom until the time for them to testify. *See* Cal. Evid. Code § 777 (Deering’s
17 2005).

18 **III. CONCLUSION**

19 For all the foregoing reasons, Defendant respectfully requests and moves to exclude the
20 aforementioned evidence.

21
22 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

23
24 

25 _____
26 Robert K. Phillips
27 Priya Navaratnasingham
28 Alberto Reyna
Attorneys for Defendant
SUBHI ABDELHALIM

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That**
14 **Were Not Produced In Discovery Should Be Excluded**

15 Defendant seeks an order that Plaintiff will not be allowed to utilize at trial any document or
16 other evidence he has failed to produce in discovery. This Order applies to every stage of trial.
17 Violations of this Order shall be grounds for such relief as the Court, in its discretion, deems proper, up
18 to and including the granting of a mistrial. This Order shall be made pursuant to the court’s holding in
19 *Deeter v. Angus* (1986) 179 Cal.App.3d 241.

20 If Plaintiff failed to produce documents in his possession which were requested, this clearly
21 would constitute a misuse of the discovery process. Code of Civil Procedure § 2023. Courts have found
22 that withheld evidence, including documents, is appropriately excluded because, among other reasons, it
23 “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal. App. 3d at 255. Further, this Court
24 has the authority to exclude at trial any and all evidence that Plaintiff has withheld from discovery.
25 *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

26 This motion is made pursuant to the aforementioned authorities cited above. Any attempt by
27 Plaintiff to introduce evidence not previously disclosed in discovery would be improper, highly
28 prejudicial, and fundamentally unjust. Such failure to produce documents and other evidence should

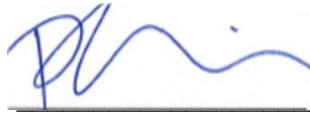
1 would be improper, highly prejudicial, and fundamentally unjust. Such failure to identify witnesses
2 should result in the exclusion of such witness.

3 **III. CONCLUSION**

4 Defendant respectfully requests that the Court exclude any witness testimony and to preclude
5 any witness from testifying at trial who Plaintiff has failed to identify in discovery.

6
7 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

8
9
10 

11 Robert K. Phillips
12 Priya Navaratnasingham
13 Alberto Reyna
14 Attorneys for Defendant
15 SUBHI ABDELHALIM
16
17
18
19
20
21
22
23
24
25
26
27
28